

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979, read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal No:
CA/HCC/0157/2025**

**High Court of Kurunegala
Case No. HC/107/2022**

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT

Vs.

Hanunawe Gedera Victor Bandara

ACCUSED

AND NOW BETWEEN

Hanunawe Gedera Victor Bandara

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Prashan Wickramaratne for the Appellant.**
Hiranjan Peiris, PC, ASG for the
Respondent.

ARGUED ON : **12/05/2026**

DECIDED ON : **30/06/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General on the following charge:

On or about the 29th September 2019 the accused committed the murder of Madurupitiya Mudiyanseelage Sanjeewa Premabandu Jayasinghe which is an offence punishable under Section 296 of the Penal Code.

As the Appellant opted for a non-jury trial, the trial commenced before a judge and the prosecution had led 04 witnesses and marked productions P1-P3 and closed the case. The Learned High Court Judge having been satisfied that the evidence presented by the prosecution warrants a case to be answered, called for the defence and explained the rights of the accused.

The Appellant made a statement from the dock and closed his case.

Considered the evidence presented by the prosecution, the Learned High Court Judge had found the Appellant guilty of the charge and sentenced him to death on 19.12.2024.

Having been dissatisfied with the verdict, the Appellant lodged this appeal in this court. The Learned Counsel for the Appellant argued the matter in absence of the Appellant. At the time of argument, he was connected via the Zoom platform from prison.

The Learned Counsel for the Appellant had formulated two grounds of appeal:

1. Whether the Learned High Court Judge erred in law by failing to consider a lesser culpability of the Appellant based on the defences of grave and sudden provocation and intoxication which are apparent from the facts of the case, thereby resulting in a serious miscarriage of justice.
2. Whether the facts and the circumstances of the case warrant the imposition of a lenient sentence on the Appellant.

Facts of the case

According to the evidence presented, the Appellant, the deceased and PW1 were employed at a construction site for a petrol shed. The Appellant worked as a security guard while PW1 and the deceased worked as labourers. Although, several workers worked at the site, only the Appellant, PW1 and the deceased had stayed at the site at night.

On the day of the incident, in the morning, the Appellant had left the site informing everyone that he was going home. At about 10.00am the Appellant had returned to the site and borrowed Rs.300/- from the deceased and left the site again.

At about 4.30pm the Appellant had come to the site while being under the influence of liquor and had engaged in a heated argument with the deceased. Thereafter, the Appellant had started to yell at the deceased in filth. The deceased, had grabbed the Appellant by his collar, and had dragged him outside the site and thrown him onto the road.

Thereafter, the deceased and PW1 had continued their work. At about 10.00pm, PW1 had noticed that the machine which operated by the deceased had stopped suddenly. When PW1 turned to that direction he had seen the deceased falling down, and had seen the Appellant standing with a metal pole. According to PW1, the Appellant had struck a blow on the neck region of the deceased with the metal pole.

With much struggle, PW1 had grabbed the metal pole from the Appellant and with the assistance of PW2, had dispatched the deceased to the hospital. The deceased had succumbed to his injuries at the hospital. The Appellant was arrested immediately.

According to the JMO who held the post mortem examination, it was noted that the death was caused due to the fatal blunt trauma to the head of the deceased. No alcohol was found in the blood sample of the deceased.

As the appeal grounds are interconnected, both counts will be considered together in this appeal.

The Learned Counsel for the Appellant at the very outset of the argument invited this court to consider that this is an appropriate case to consider under Section 297 of the Penal Code on the basis of grave and sudden provocation.

The Learned Additional Solicitor General in keeping with the highest traditions of the Attorney General's Department did not object to the proposal made by the Learned Counsel for the Appellant.

Exception 1 to Section 294 (Murder) of the Penal Code states as follows:

“Culpable homicide is not murder if the offender whilst deprived of the power of self-control by grave and sudden provocation, cause the death of the person who gave the provocation or causes the death of any other person by mistake or accident”.

Explanation: - Whether the provocation was grave and sudden enough to prevent the offence from amounting to murder is question of fact.

The Learned Counsel extended his argument on the basis that the facts and circumstances of this case only warrant a sentence under the second limb of Section 297 of the Penal Code.

Section 297 of the Penal Code states as follows:

Whoever commits culpable homicide not amounting to murder shall be punished with imprisonment of either description for a term which may extend to twenty years, and shall also be liable to fine, if the act by which the death is caused is done with the intention of causing death, or of causing such bodily injury as is likely to cause death;

or with imprisonment of either description for a term which may extend to ten years, or with fine, or with both, if the act is done with the knowledge that it is likely to cause death, but without any intention to cause death, or to cause such bodily injury as is likely to cause death.

According to PW1, in his evidence it was admitted that the Appellant was drunk at the time of the incident. This was not taken into consideration by the Learned High Court Judge.

In **Don Shamantha Jude Anthony Jayamaha v. The Attorney General CA/303/2006 and C.A.L.A. 321/2006** decided on 11/07/2012 the Court held that:

“It is trite law that even if the accused does not specifically take up the defence of a general or special exception to criminal liability, if the facts and circumstances before the court disclose that there were such materials to sustain such a plea then the court must consider whether the accused should be convicted for a lesser offence”.

In the case of **King v. Albert Appuhamy** 40 NLR 505 it was held:

“Failure on the part of a prisoner or his Counsel to take up a certain line of defence does not relieve a Judge of the responsibility of putting to the jury such defence if it arises on the evidence.”

In this case the prosecution evidence revealed that there is some degree of voluntary intoxication on the part of the Appellant. Even in his *allocutus*, the Appellant had told Court that he was drunk when the incident had taken place. The final submissions made by the prosecution and the defence are not available in the file.

In **Jayathilaka v The Attorney General [2003] 1 SLR 107** the court held that:

“Though the accused has not taken up the defence of intoxication if such defence arises on the evidence, it is the duty of the jury to consider the same”.

In **The King v Bellana Vithanage Eddin** 41 NLR 345 the court held that:

“In a charge of murder, it is the duty of the judge to put to the jury the alternative of finding the accused guilty of culpable homicide not amounting to murder when there is any basis for such a finding in the evidence on record, although such defence was not raised nor relied upon by the accused”.

In the case of **King v. Withanilage Lanty** 42 NLR 317 it was held:

“There was evidence in this case upon which it was open to the jury to say that it came within exception 4 to section 294 of the Penal Code and that the appellant was guilty of culpable homicide not amounting to murder. No such plea, however, was put forward on his behalf. In the course of his charge the presiding Judge referred to this evidence as part of the defence story but not as evidence upon which a lesser verdict might possibly be based. Held, that it was the duty of the presiding Judge to have so directed the jury and that in the circumstances the appellant was entitled to have the benefit of the lesser verdict.”

In the case of **Queen V. Kularatne** 71 NLR 529 it was held:

“that when an unsworn statement is made by the accused from the dock, the jurors must be informed that such statement must be looked upon as evidence, subject however to the infirmity that the accused had deliberately refrained from giving sworn testimony. But the jury must also be directed that (a) if they believe the unsworn statement, it must be acted upon, (b) if it raises a reasonable doubt in their minds about the case for the prosecution, the defence must succeed, and (c) that it should not be used against another accused”.

In this case, the Learned High Court Judge had not considered the intoxication when the Appellant was sentenced. Had the trial Judge considered the intoxication of the Appellant, the Appellant should have been sentenced under the second limb of Section 297 of the Penal Code.

Hence, considering all the circumstances of this case, I set aside the sentence imposed on the Appellant and substitute it with a term of 10 years rigorous imprisonment. A fine of Rs.1000/- with 06 months default sentence is also imposed on the Appellant. Additionally, I order a compensation of

Rs.150,000/- to the deceased's family with a default sentence of 1-year simple imprisonment.

As the Appellant is in prison since the date of conviction by the Learned High Court Judge, I order the sentence imposed by this Court to be operative from the date of conviction, i.e., 19/12/2024.

Subject to the above variations, the appeal is dismissed.

The Registrar of this Court is directed to send this judgment to the High Court of Kurunegala along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL